

IN THE COMMON PLEAS COURT OF MIAMI COUNTY, OHIO
CIVIL DIVISION

THE OTHER WOMAN AND THE
WIFE, LLC

Plaintiff

vs.

KRISTEN JACOBS

Defendant.

* CASE NO. 24-498
* JUDGE JEANNINE N. PRATT
*
* **PLAINTIFF'S MEMORANDUM**
* **IN OPPOSITION TO**
* **DEFENDANT'S MOTION TO**
* **COMPEL ARBITRATION OR STAY**
* **PENDING ARBITRATION**

Now comes Defendant, The Other Woman and The Wife, LLC, by and through counsel, and hereby submits its Memorandum in Opposition to Defendant Kristen Jacob's Motion to Compel Arbitration or Stay Pending Arbitration. This Memorandum in Opposition is more fully supported by the accompanying Memorandum in Support and Affidavit of Chelsea Smallwood.

Respectfully submitted,

/s/ Michael W. Sandner

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MEMORANDUM IN SUPPORT

This action arises from claims of tortious interference with contractual and business relations, stemming from the Defendant's partially successful attempts to infiltrate and intimidate members of the The Other Woman and The Wife (hereinafter "TOW") platform, with the ultimate goal of disrupting TOW's business relationships with its subscribers. On September 11, 2023, Kristen Jacobs (hereinafter "Defendant") discovered a TikTok video posted by Chelsea Smallwood (hereinafter "Smallwood"), the owner and founder of TOW, that allegedly revealed intimate details of an affair involving the Defendant's husband and her best friend. The affair was previously uncovered in August 2023. (Defendant/Third Party Plaintiff's Complaint at ¶¶ 19-20.). That same day, the Defendant joined the platform known as The Other Woman and The Wife, anonymously, while paying the subscription fee with her actual name and credit card. (*Id.* at. ¶¶ 8, 23; See also Affidavit of Chelsea Smallwood at ¶ 6.).

Upon joining, the Defendant began collecting members personal information (i.e., screenshotting forums, members pictures), intimidating members and forcing them to leave for fear of being exposed. (See Plaintiff's Compl. ¶ 14.). As a result, on or around December 2023, the Defendant's account was located on TOW via her credit card information, and her account and access to TOW were immediately terminated. (See Smallwood Aff. at ¶ 10.).

TOW filed its Complaint asserting claims for tortious interference with contractual and business relations on October 24, 2024. The Defendant filed her Answer to the Complaint on December 6, 2024, asserting as an affirmative defense that the court lacked jurisdiction to resolve this dispute because Plaintiff agreed to arbitrate the claims asserted in this matter. (See Defendant's Answer/Counterclaim). Concurrently, Defendant filed a Motion to Compel Arbitration or Stay Pending Arbitration pursuant to Terms and Services that do not govern TOW.

I. The February 7, 2023 Terms of Service Governed the Period During Which Defendant Was a Member of the TOW Community.

As a preliminary matter, TOW asserts that Defendant was bound by the February 7, 2023, iteration of the Terms of Service, rather than the revised August 12, 2024, version cited by the Defendant. (See Defendant's Motion to Compel Arbitration, Ex. 1). It is undisputed that the Defendant joined the TOW community on or around September 11, 2023. (See Defendant's Counterclaim ¶ 7). However, the Defendant was removed from the platform on or around December 11, 2023, well before the Terms of Service were revised, to their most recent iteration. The Defendant was bound by the February 7, 2023 Terms of Service, as those were the terms in effect at the time of her membership in the TOW community. Accordingly, the February 7, 2023 Terms of Service constitute the controlling agreement in this matter.

II. TOW Is Not Bound by the Arbitration Agreement Because It Was Not a Party to the Terms of Service and Did Not Consent to Its Provisions.

Ohio courts recognize the principle "that arbitration is a matter of contract and a party cannot be required to so submit to arbitration any dispute which he has not agreed to so submit[.]" *Entire Energy & Renewable, LLC v. Duncan*, 10th Dist. Franklin No. 12 AP-1056, 2013-Ohio-4209, 999 N.E.2d 214 ¶ 17-18. Therefore, when deciding whether a party has agreed to arbitrate, courts should apply ordinary principles that govern the formation of contracts. *Seyfried v. O'Brien*, 2017-Ohio-286, 81 N.E.3d 961, ¶ 19 (8th Dist.). While there exists a strong public policy in favor of arbitration, it is not applicable to any and all circumstances. *Entire Energy & Renewable, LLC v. Duncan*, 10th Dist. Franklin No. 12 AP-1056, 2013-Ohio-4209, 999 N.E.2d 214 ¶ 29. The presumption of arbitration applies to parties to the agreement. *Id.* However, "[t]here can be no presumption in favor of arbitration if the party in litigation has not agreed to submit its disputes to arbitration. If a party has not signed an arbitration agreement, a presumption arises against

arbitration.” Id.; see *State ex rel. Rogers v. Philip Morris, Inc.*, 10th Dist. No. 06AP-1012, 2008-Ohio-3690, ¶ 19.

Although Ohio public policy generally favors arbitration as a means to settle disputes, this policy will be disregarded in instances where “it may be said with positive assurances that the arbitration clause is not susceptible of an interpretation that covers the asserted dispute.” *State Dept. of Ad. Servs. v. Design Group, Inc.*, 10th Dist. Franklin No. 07AP-215, 2007-Ohio-6278, ¶ 5; *Schaefer v. Allstate Ins. Co.* (1992), 63 Ohio St.3d 708, 711-712, 590 N.E.2d 1242. “Indeed, where the party resisting arbitration is not a signatory to any written agreement to arbitrate, a presumption against arbitration arises.” Id. (internal citation omitted).

It is evident from the four corners of the February 7, 2023 Terms of Service that the agreement is explicitly between CircleCo, Inc. (hereinafter “Circle”) and its users. Circle is an 'online community platform for creators that helps them bring their discussions, memberships, and content to their audience and community under the creator’s own brand.' (See Aff. of Chelsea Smallwood Ex. 1.) More specifically, Circle serves as the platform on which TOW operates.

Before accessing TOW, the Defendant expressly agreed to the February 7, 2023 Terms of Service, which were a prerequisite for entry to the platform. (See Aff. of Chelsea Smallwood at ¶ 7.). The Terms of Service are expressly titled “Circle Terms of Service” and state that '[t]hese Terms of Service . . . are a binding contract between you and CircleCo, Inc.' (February 7, 2023 Terms of Service). Within the Terms of Service, Circle is defined as “we,” “us,” “Company,” or “Circle.” Notably, there is no mention of The Other Woman and The Wife (TOW) within the Terms of Service. Thus, the accurately referenced, Feb. 2, 2023, Terms of Service governs the relationship between CircleCo, Inc., and the Defendant—not TOW. Moreover, the February 7, 2023 Terms of Service includes an arbitration provision, which states in relevant part:

READ THIS SECTION CAREFULLY BECAUSE IT REQUIRES THE PARTIES TO ARBITRATE THEIR DISPUTES AND LIMITS THE MANNER IN WHICH **[Defendant/Third-Party Plaintiff]** CAN SEEK RELIEF FROM **[CIRCLE]**. This Section (the “Arbitration Agreement”) applies to and governs any dispute, controversy, or claim between **Defendant/Third-Party Plaintiff** and **Circle** . . .

Feb. 7, 2023 Terms of Service § 15.

TOW's involvement in this case did not arise from a dispute between CircleCo, Inc. and the Defendant, nor has the Defendant alleged otherwise. The February 7, 2023 Terms of Service and its arbitration provision explicitly govern disputes involving CircleCo, Inc. and the Defendant, as evidenced by the clear language of the agreement. It is undisputed that TOW is not a party to the February 7, 2023 Terms of Service and, therefore, cannot be compelled to arbitrate claims it has not agreed to arbitrate. See *Entire Energy & Renewable, LLC v. Duncan*, supra.

Defendant's reliance on a subsequent version of the Terms of Service (see Defendant's Motion to Compel Arbitration, Ex. 1) does not alter this conclusion. The February 7, 2023 Terms of Service remains the controlling agreement, and its arbitration provision applies exclusively to disputes arising directly or indirectly between CircleCo, Inc. and the Defendant in connection with the Terms of Service. However, the claims at issue in this matter are between TOW and the Defendant, rendering the arbitration provision inapplicable.

Defendant's Motion makes it unequivocally clear that the dispute centers on allegations brought by TOW against the Defendant. As TOW is not a party to the February 7, 2023 Terms of Service, it cannot be subject to the arbitration provision contained within that agreement.

For these reasons, The Other Woman and The Wife, LLC respectfully requests that this Court deny Kristen Jacobs' Motion to Compel Arbitration and Stay Pending Arbitration."

Respectfully submitted,

/s/ Michael W. Sandner

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that the foregoing *Plaintiff's Memorandum in Opposition to Defendant's Motion to Compel Arbitration or Stay Pending Arbitration* was filed electronically in accordance with this Court's electronic filing guideline on this 20th day of December, 2024. Notice of this filing will be sent to all parties by operation of this Court's electronic filing system or will be served by ordinary U.S. mail, postage prepaid, pursuant to applicable Miami Local Rules, upon counsel or parties who are not sent electronic notification. Parties may access this filing through the Court's electronic filing system.

/s/ Michael W. Sandner

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